Committee: Disarmament and International Security Committee (DISEC)

Topic: Addressing the Proliferation of Autonomous Weapons Systems

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1. Introduction

With the surge in AI development, advanced robotics, and new military weapons systems, traditional conflict is becoming increasingly influenced by autonomous technology. Weapons systems like Turkey's STM Kargu-2, Israel's "Harpy", and others are becoming increasingly sophisticated. Enhancements and constant developments in artificial intelligence are altering the conduct of armed conflict, and lethal autonomous weapons systems (LAWS) are now introducing critical ethical, legal, and security questions for our world. Such weapons, once activated by humans, can automatically select and engage targets with little or no human intervention. Supporters of this innovative technological system argue that it may improve military precision, reduce overall risk for ground soldiers, and increase efficiency during combat. On the other hand, critics argue that removing human judgement from decisions regarding life and death may undermine compliance with international humanitarian law, specifically agreements like the Geneva Conventions. This technology can also prioritize immediate victory over long-term humanitarian consequences, blur accountability in cases of malfunctions and breaches of international humanitarian law, and contribute to a large-scale destabilising arms race among global powers seeking to develop increasingly advanced autonomous weapons.

The aforementioned concerns are not restricted to hypothetical situations. There is growing evidence that AI-supported and augmented weapons systems are being increasingly utilized and deployed in contemporary battlefields and conflict. The Future of Life Institute has discussed the reported use of Turkiye's Kargu-2 loitering munition during the conflict in Libya in 2020. A United Nations Panel of Experts report published in 2021 described the use of autonomous weapons systems against retreating forces, although it did not conclusively establish the Kargu-2 independently selected and killed human targets without operator intervention. This raises the question: are AWS and LAWS capable of following international law, basic conflict rules and courtesy, and humanitarian law in the same way as humans, and if not, who holds accountability for these systems?

2. Definition of Essential Terms

1. Critical Functions (Identify, Select, Engage)

These are the core functions that characterize autonomous weapons systems and that raise pressing questions that need to be addressed. According to the discussions within the United Nations, countries must discuss and come to an agreement regarding weapons that can automatically identify a specific type of target (humans, infrastructure, locations), select a target (military infrastructure, combat soldiers, military vehicles), and engage it (deploy missiles, kamikaze drone, maneuvers, cyberattacks to digital infrastructure from close or distant proximity). The ability to select and engage targets without further human intervention is central to discussions about autonomous weapons systems, although no universally agreed definition has been established.

2. Human Judgement/Control (Context-Appropriate)

This is an arguably required component of all weapons systems, including the AWS in this topic. To ensure that weapons and the actions that they carry out comply with international law during armed conflict, some degree of human control and/or judgement may be necessary, depending on the system and its intended use. The extent to which autonomous systems can reliably assess complex battlefield conditions remains a subject of legal and technical debate. Many states and NGO's have argued for "meaningful human control", while proponents of the technology have argued that a lower degree of human insight is required. For example, the United States Department of Defense has used the phrase "appropriate degree of human judgement" in its official policies.

3. Two-Tier Approach Solution

This is a long-discussed possible solution for these systems. It would involve two tiers of international regulation: the prohibition of certain autonomous weapons systems and the regulation of others. This proposed framework, supported by the International Committee of the

Red Cross and various civil society organizations, pushes for systems with an unpredictable nature and those designed or used to target humans to be outright banned, and for other systems to integrate human judgement and appropriate safeguards, limiting target types, duration and geographical location, while requiring human supervision to reduce the risk of violations of international humanitarian law.

4. **Geneva Convention, Additional Protocol 1, Article 36**

This article requires states party to Additional Protocol 1 to review new weapons, means and methods of warfare to determine whether their use would be prohibited under international law prior to adoption and implementation in their respective military branches. However, some emerging technologies incorporate machine-learning capabilities, raising questions about whether their behaviour could change after deployment. It is important to discuss possible re-evaluation measures, and how nations may collaborate to have a common framework for assessing AWS and ensuring that the technology remains compliant with international humanitarian law.

5. **Martens Clause: Hague Convention 1899**

Even in cases where no specific treaty is applicable, populations must remain protected by "the principles of humanity and the dictates of public conscience". The Martens Clause is therefore relevant to debates over whether delegating life-and-death decisions to autonomous systems is consistent with international humanitarian law. However, it does not itself establish a categorical prohibition on autonomous weapons systems. Although the systems may be extremely effective in performing specific military functions, ethical arguments arise when decisions involving lethal force are made without direct human involvement. Humans in conflict carry immense responsibility and are subject to obligations under international humanitarian law, including the protection of wounded and sick combatants, civilians and prisoners of war, while questions remain about how autonomous systems can operate consistently with these obligations.

6. The Question of *Accountability*

If an autonomous weapons system commits what would be considered a war crime in the case of a human perpetrator, who must be held responsible? The programmer may have not intended the outcome, the commander may not have foreseen it, and the machine itself cannot be prosecuted or held legally responsible. This raises questions about the responsibility of commanders, operators, developers and states when autonomous systems cause unlawful harm. While some nations like Russia and the USA argue that existing international humanitarian law provides an applicable legal framework, other nations support the development of additional legally binding rules and stronger requirements for human oversight.

7. Geneva Convention, Additional Protocol 1, Article 57

Parties to an armed conflict must take all feasible precautions when planning and conducting attacks to avoid, and in any event minimize, incidental civilian harm. However, some autonomous weapons systems may operate with limited communication or opportunities for human intervention after activation. In the case that circumstances change or new information becomes available, how can the attacking party ensure that civilians are not harmed? Some states argue that AWS may take precautions better than stressed soldiers, while other states emphasize the importance of human judgement and oversight in responding to changing battlefield conditions.

8. CCW Protocol IV Success (Laser Weapons)

The Convention on Certain Conventional Weapons (CCW) established an important precedent in 1995 through Protocol IV, which prohibits laser weapons specifically designed to cause permanent blindness to unenhanced vision. This agreement demonstrates that international regulation can address emerging weapons technologies before their widespread deployment. It is therefore frequently discussed as a potential precedent for regulating autonomous weapons systems, although states disagree on whether new prohibitions or additional restrictions are necessary.

3. General Context

Starting in 1899, long before weapons systems had significant degrees of autonomy, the Martens Clause in the Hague Convention established that, even in the absence of specific treaty provisions, civilians and combatants remain under the protection of the principles of humanity and the dictates of public conscience. Later, in 1977, Article 36 of Additional Protocol I the Geneva Conventions required states party to the Protocol to review new weapons, means and methods of warfare to determine whether their use would be prohibited under international law. The Convention of Certain Conventional Weapons (CCW), adopted in 1980, subsequently established a framework for restricting or prohibiting certain conventional weapons. A significant example was seen in 1995, when Protocol IV prohibited laser weapons specifically designed to cause permanent blindness. This development is often cited as a precedent for regulating emerging weapons technologies before their widespread adoption.

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In the early 1980s, automated defensive systems were increasingly developed and deployed by major military powers. For instance, aircraft carriers and ships of the United States Navy began using “Phalanx” and “Aegis” systems to detect and respond to potential incoming missiles. Meanwhile, Israel began developing the “Harpy” system, an autonomous loitering munition designed to detect and attack radar emitters. During this period, two major incidents highlighted the risks associated with military automation and reliance on computer-generated information. Aboard the USS Vincennes in July 1988, Iran Air Flight 655 was shot down by the crew, who incorrectly identified the civilian aircraft as a military threat. The incident killed all 290 people on board and raised concerns about human decision-making and reliance on automated combat information systems. In 2003, separate incidents involving Patriot missile systems resulted in the downing of British and American aircraft during the Iraq War, demonstrating the risks of automation bias and excessive reliance on automated threat assessments.

It was during the early 2010s that this gained significant attention on the international agenda. In November of 2012, Human Rights Watch and the International Human Rights Clinic at Harvard Law School published a report calling for a pre-emptive ban on fully autonomous weapons, citing concerns about accountability and compliance with international humanitarian law. At approximately the same time, the United States Department of Defense issued Directive 3000.9, requiring autonomous and semi-autonomous weapons systems to be designed to allow commanders and operators to exercise appropriate levels of human judgement over the use of force. Discussions under the CCW began in 2014, followed by the establishment of a Group of Governmental Experts (GGE) in 2016. Civil society organisations, researchers and technology experts also increasingly called for international safeguards concerning autonomous weapons.

From 2018 onwards, technological developments increasingly challenged the pace of international negotiations, as weapons incorporating autonomous functions became more sophisticated. In 2020, Azerbaijan used Israeli-produced “Harop” loitering munitions in Nagorno-Karabakh against Armenian forces. These systems played a significant role in the conflict, although their use does not necessarily establish that lethal targeting decisions occurred without human involvement. Despite continued negotiations under the CCW, states have not reached a consensus on a legally binding international instrument specifically regulating autonomous weapons systems. This led to the International Committee of the Red Cross proposing, in 2021, legally binding rules prohibiting unpredictable autonomous weapons and those designed or used to target humans, while imposing restrictions on other systems. This is the main basis of the aforementioned “two-tier approach”.

The development and deployment of these weapons became increasingly prominent following Russia’s full-scale invasion of Ukraine in 2022. The conflict has involved extensive use of drones, electronic warfare and increasingly sophisticated automated targeting technologies. Both Russian and Ukrainian forces have adapted their systems in response to

electronic jamming and changing battlefield conditions, contributing to rapid technological innovation. However, remotely piloted drones should not automatically be classified as autonomous weapons systems, as their levels of human control vary considerably.

In 2026, international discussions continued through the United Nations and the CCW framework, reflecting ongoing disagreements over the need for a legally binding instrument. Although proposals for new international rules have gained support, significant differences remain regarding definitions, human control and the scope of potential prohibitions. Reports of increasingly autonomous military technologies being tested and deployed in Ukraine have further intensified these concerns, although specific claims about fully autonomous lethal engagements require independent verification. The next CCW Review Conference is scheduled for November 2026, providing an important opportunity for states to assess progress and consider future regulatory measures.

4. Key Parties Involved and their Perspectives

a) United States

The United States of America is one of the leading developers of military AI, autonomous weapons, and similar technologies globally. They are one of the main producers and have many headquarters of private firms that produce these weapons. The United States has generally favored applying existing international humanitarian law and developing non-binding guidelines rather than negotiating a new legally binding treaty specifically addressing autonomous weapons systems. The United States' technological advantage may influence its preference for maintaining flexibility in the development of international agreements.

b) Russian Federation

The Russian Federation is one of the major users of drones and loitering munitions in their war campaign against Ukraine, featuring extensive AI-backup and development in their LAWS arsenal. Similar to the US' position, Russia has opposed proposals for a new legally binding treaty specifically regulating autonomous weapons systems. It is important to note the large influence in the CCW talks, and how it may impact the talks moving forward.

c) People's Republic of China

China is one of the major suppliers of AI technology and hardware, though many classify their position on the issue as quite "ambiguous". China has supported restrictions on certain categories of lethal autonomous weapons systems while advocating a distinction between acceptable and unacceptable applications of military artificial intelligence.

d) International Committee of the Red Cross (ICRC)

The Red Cross serves as one of the main guardians of international humanitarian law, and holds one of the most influential voices of a non-state actor on the issue. Since 2021, the organization has recommended and urged nations to adopt binding rules in a formal agreement where unsuitable and potentially dangerous AWS are banned outright.

e) European Union

The European Union comprises 27 member states, all of which are currently in the CCW. EU member states generally support maintaining human control over the use of forceIt is important to take into account how the alliance of the EU may affect your nation's stance, especially if you are assigned a EU member-state.

5. Questions to Consider

A set of questions to guide the debate and help delegates think about their position. These may be questions a resolution should answer or points for delegates to consider during lobbying.

1. ***Where is the line between "acceptable" and "unjustifiable" autonomous weapons systems drawn, and on what basis? Should there be international standards and due process in the determination process, or should it be contained to each nation's respective military/defense branches?***

2. ***In the case where an autonomous weapon system causes unlawful harm (war crime) and breaches ideals of international humanitarian law, who should be held accountable and on what grounds?***

3. ***Should states continue working with the CCW framework, where decisions are generally made by consensus, or should negotiations move to another international forum that could allow agreements to be reached without unanimous support?***

4. ***How can the international community collaboratively prevent autonomous weapons systems from becoming available to non-state actors, given the increasing accessibility of relevant technologies?***

6. Suggested Research Resources

a) United Nations General Assembly Resolution 78/241 (Digital Library)

Resolution PDF Centre- 6 Official Languages

b) Automated Decision Research - Country Database

Country Stance & CCW Engagement

c) Opinio Juris Series - Reportage on CCW Activity

Article Link- Opinion Column

d) United Nations Official Page - 2026 LAWS Negotiations (DISEC)

Database on UN Working Papers - LAWS Topic DISEC

7. Conclusion

Autonomous weapons are no longer a question for the future. Drones and loitering munitions have moved from conflicts in Libya and Nagorno-Karabakh to the front lines in Ukraine, while reports of increasingly autonomous targeting capabilities have raised concerns about how this technology will continue to advance. Diplomacy has struggled to keep up: after more than ten years of talks, states agreed in September 2026 on a set of elements for a possible agreement, but not a binding treaty. The divide remains clear, with countries such as the United States and Russia arguing that existing international law provides an adequate framework, while many others call for new rules before these weapons spread further. As delegates, your task is to find solutions that can work in the real world: where to draw the line between acceptable and unacceptable systems, how to keep humans accountable, and how to stop this technology from reaching those who would misuse it. I look forward to our debate sessions together!

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